

FEDERAL POLYTECHNIC MUBI
SCHOOL OF BUSINESS AND MANAGEMENT TECHNOLOGY

LECTURE NOTE

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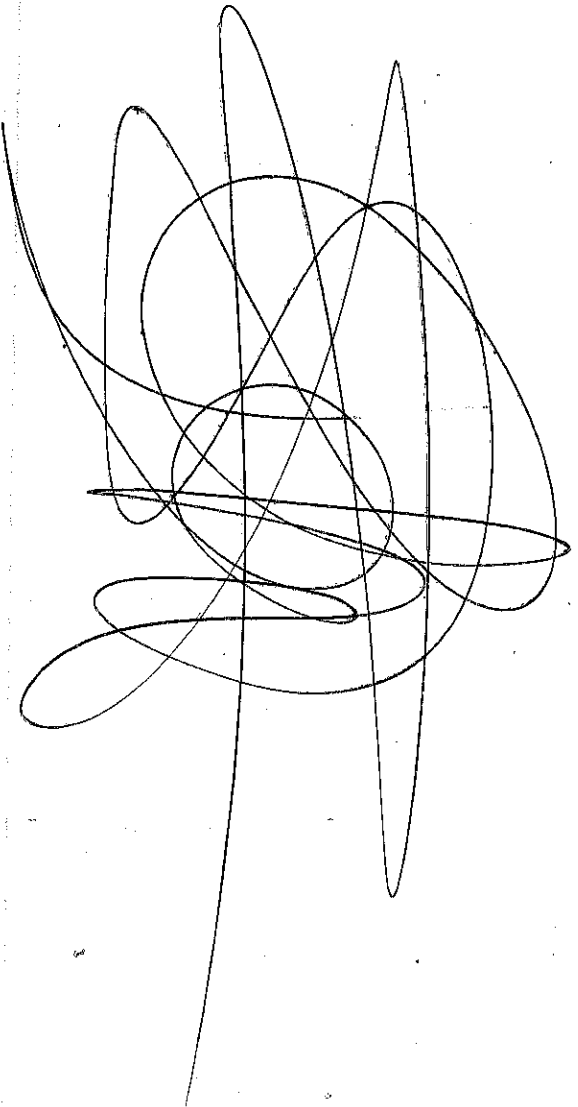
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COURSE TITLE: NIGERIAN LOCAL GOVERNMENT



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TOPIC 1: MEANING AND FUNCTIONS OF LOCAL GOVERNMENT

1 Meaning of Local Government

Many scholars define local government differently. This is as a result of varied angles on the actual role of local government which differ from one country or nation to another. This means that the definition of local government lies from the perspective it's viewed. But it's ok to consider some of the elements when defining the term local government, such as local, sub-division, system, levels, tiers, organs, authority, powers, administrative units, subordinate, elements to define local government. Because most of the definitions has contained one, two or three of the above words/elements, for instance: The term local government can be defined as the system of government where by the central government sets up subordinate units of administration and vest in them authority to perform local function" (Cowan, 1958). According to the united nations organization (UNO: 1961) the term local government refers to "a political sub-division of a nation (or a federal system or a state) which is constituted by law and has substantial control of local government affairs including the power to impose taxes or otherwise selected" And in the official handbook on the reformed system of local government 1976, local government is been defined as government at the local level exercised through representative councils established by law to exercise specific powers within defined areas (Local Government Reform Handbook, 1992). According to Oni, (1993), local government is that "level of government exercised through representative councils, established by law to exercise powers within a geographical area with common social and political ties". These powers should give the council substantial control over local affairs as well as the staff, and institutional and financial powers to initiate and direct the provision of services and to determine and implement projects so as to complement the activities of the state and federal governments in their areas" From the above view it is clearly stated that local government is the last-tier of government administration after the federal and state government inclusively which is expected to carry out certain function of enhance development in the rural area. To (Eneanya, 2012:15) this authority has structures and functions, collects revenue, experiences some challenges and is controlled by central authority

ii- Characteristics of Local Government

Almost all local government bodies share certain characteristics/features:

- ❖ That local government is a subordinate system of government
- ❖ A continuing organization
- ❖ The authority to undertake public activities
- ❖ The ability to enter into contracts
- ❖ The right to sue and be sued
- ❖ The ability to collect taxes; and
- ❖ Has the power to make policies, prepare budgets and have a measure of control over its own staff.

iii- Rational for Establishing Local Government

The following are the reasons for establishing local government (Eneanya, 2012: 19-20):

- ❖ Local government provides the platform for people to conduct their own affairs in line with local needs aspirations, resources and customs which they alone understand better than any outsider
- ❖ Provides framework for mobilizing and sustaining popular zeal and initiative in development
- ❖ Serves as a windbreak against over-concentration of power at the center which often leads to tyranny
- ❖ It acts as a two-way channel of communication between the local population and the central government
- ❖ Aggregation of local interest: It aggregates local interest and transmits these to the center and also keeps the local population informed about central government policies and programs
- ❖ Local government serves as socio-economic laboratory for testing new proposals for government organization and sound economic policies; and
- ❖ Acts as training ground for leadership positions at the national level

2. Functions of Local Government

The functions of local governments in Nigeria as a third-tier of government is clearly recognized in the Fourth Schedule of 1979, 1989 and 1999 constitution as amended, Section 7(1) and these include:

A Mandatory Local Government Functions

- i. Collection of rates (including tenement rates) radio, television and non-mechanically propelled vehicle licenses (bicycles and trucks);
- ii. Establishment and maintenance of cemeteries, burial grounds, homes for destitute and infirm/ill or destitute, market, motor-parks, public conveniences, roads, drawn and recreation facilities (including play-grounds and parks)
- iii. Construction and maintenance of roads, streets lighting, drains and other public highways, parks, gardens, open spaces or such facilities as may be prescribed from time to time by the State House of Assembly
- iv. Assessment of privately owned house or tenements for the purpose of levying such rates as may be prescribed by the house of Assembly of State
- v. Naming of roads and streets and numbering of houses
- vi. Licensing, regulation and control of the sale of liquor.
- vii. Control and regulation of outdoor advertising and hoardings, pots, shops, kiosks, restaurants and laundries;
- viii. Registration of all births, deaths and marriages.

B Functions in Which Local Governments Are To Participate

- i. State economic planning and development
- ii. Provision and maintenance of primary education services, adult and vocational education
- iii. Development of agriculture and natural resources (other than the exploitation of minerals)
- iv. Provision and maintenance of health services.

- v. Other functions as may be conferred on a local government council by the House of Assembly of the State.

C Legislative Functions in Local Government Administration

a- Functions of Council

The Legislative arm of local government, which is the Council, is conferred with powers and functions as follows:

- i- Debating, amending or approving the annual budget proposed by the Executive arm. Though, the Chairman could veto these activities, members of the Council could override this decision by two-third majority votes;
- ii- Making of bye-laws. Bye-laws have the force of law within the local government are;
- iii- Vetting and monitoring the implementation of projects and programs in the annual budget of the local government;
- iv- Examining and debating the monthly statements of income and expenditure rendered to it by the Chairman of Local government; and
- v- Advising, consulting and liaising with the Chairman of the Local government.

b- Mode of Exercising Legislative Powers

The legislative powers vested in the local government Council shall be exercised by bye-laws duly passed by the Council. To become effective, such bye-laws must be assented to by the Chairman of the Local Government, if the bye-law is passed again by the Council by two-third majority of members. In such cases, the bye-laws shall become effective and assent of the Chairman of Local Government shall not be required in respect of such a byelaw (Eneanya, 2012).

TOPIC 2: PROBLEMS AND CONTROL OF LOCAL GOVERNMENT

1- Problems of Local Government Administration in Nigeria

The following are the problems of local government administration:

- i. **Inadequate Finance:** Most Local Governments do not have enough funds to carry out its statutory responsibilities. The internally generated funds are inadequate grants and federal allocated revenues are manipulated by most state governments
- ii. **Bribery and Corruption:** Bribery and corruption involving the officials of the local governments undermine the effective performance of the local government administration.
- iii. **Shortage of skilled personnel:** There is acute shortage of the right caliber of personnel for local governments. Local governments need competent trained, experienced and competent personnel to provide an efficient and effective service to the public.
- iv. **Political Interference:** State and Federal Governments unnecessarily hinder local government programs and policies even where they do not contradict current statutes or policies. In addition, political parties interfere with the

- v. **Appointment of personnel:** are along party lines in local governments when their members are in power.
- vi. **Poor Leadership:** There is the paucity of top leadership positions, which could coordinate and direct the departmental heads. Over the years, there has been the proper of having competent leadership. Tribalism, Nepotism and Favoritism. These feature in the appointment promotion and discipline and transfer of local government staff.
- vii. **Gradual Erosion of Power and autonomy:** Most state governments have taken over certain services of the local governments by excessive control of local government activities. The state governments established Local Government activities. The State Governments established Local Government service commissions to help them appoint promote, transfer and terminate employees. Beside, at the governments there is office of Adviser on political and local government matters. State Houses of Assembly are empowered to provide for the establishment, structure, composition, finance and functions of such Local Governments. There is also provision for control of Local Government finance by State Houses of Assembly (Constitution of 1999, chapter seven, subsections 7(i) and chapter 6 subsections 162 subsections 6 and 8). This has made 774 Local Government appendages of State Government; hence their performances are ineffective (Ugwu, 2003:52).
- viii. **Partisan Politics and victimization:** Elected counselors see themselves as the party's representative in the council. Besides, where the political party control the chairmanship and councillorship position in the Local Governments, there is a situation of antagonism and non-cooperation, stalling or showing down the Local Government programs.
- ix. **Unequal size of Local government:** The indiscriminate creation of Local Governments by Federal and State Governments has resulted in a situation, where some Local Governments are large to effectively administer their whole area, while others are small to generate revenue to undertake meaningful program.
- x. **Poor salaries and conditions of service:** The conditions of service in the Local Governments are often very poor of the Local Governments to attract high quality personal.

2- Control of Local Government

Local Governments are controlled through the following mechanisms:

- i- **Legislature control:** Local Governments are established by an act of parliament or decree stating their functions, powers and limitations. Their operations are guided by these laws. Furthermore, the legitimate could amend these laws or investigate the performance of or allegations about particular Local Governments.
- ii- **Administrative control:** The power of supervising the activities of Local governments is delegated to the Ministry or department responsible for Local government. The department is empowered to approve their annual budgetary estimates, major projects, strategies of implementation and bye-laws before they take effect. There is also internal audit that checks the accuracy according records within the councils. The commissioner of Local government uses default power to control the Local government. The commissioner has the power to dissolve Local

government because of financial irresponsibility or corruption and appoint care taker committee. This is an effective weapon to check and control the Local government through periodic inspection, the State government exercise administrative control over certain services administered by Local government. For example inspection of schools, roads and health centers. The purpose of inspection is to assist or advice the Local government. Dissatisfied members of the public can seek redress through the public complaints commission where their rights and liberties are violated by Local government employees. The commission could investigate the activities of such employees and recommend punitive or corrective measures.

- iii- **Financial control:** The supervisory department is empowered to approve or reject Local government budgetary estimates. They may not introduce rates or levies, implement new projects or obtain internal or external loans without approval by the Supervisory Ministry. The Executive council of a State may exempt any persons or class of persons within a Local government's area of that State from liability government imposed by the Local government (Ezeani, 200:269). State's auditor-general audit the accounts of Local governments.

- iv- **Judiciary control:** Local governments are legal entities which can sue and be sued. Courts can call Local government or their official to order if they breach any law establishing or guiding them. The courts can declare their actions illegal or unconstitutional if they violate the provisions of the constitution.

TOPIC 3: HUMAN RESOURCES MANAGEMENT IN LOCAL GOVERNMENT UNIT

i. Staffing in Local Government Administration

To attract the skilled personnel required and protect career Local Government officials from the buffetings of partisan politics, there is the need to ensure the maximum utilization of the scarce high-caliber manpower resources available to Local Government. In this unit, we would examine the staffing processes of local government administration in Nigeria.

a- Staffing Function

The local government has important staffing function to perform (Guidelines of Local government reform, 1976:19):

1. Ensuring that they are available quantity and quality staff that would enable them discharges their responsibilities;
2. Laying down the terms and conditions of service for local government staff, so as to ensure that they are directly equated to those of the State Civil Service;
3. Promote local government training schemes at various levels for administrative, financial, professional and technical staff in cooperation with training institutions and other government ministries.

ii. **Recruitment in Local Government:** Each Local Government shall undertake the appointment, discipline and promotion of its staff on Grade Levels 01-06 under general and unified guidelines to be provided by the Local Government Service Commission, while officers on Grade levels 07 and above shall be appointed, posted, disciplined and promoted by the Local Government Service Commission, provided that all appointments shall be made to unfrozen

posts in the approved budget of the Local Government. With respect to recruitment, appropriate pre-entry qualifications shall be uniformly applied as provided in the approved scheme of service for Local Government employees whose provisions shall be STRICTLY applied in carrying out recruitment into the Local Government Service, the Local Government and Local Government Service Commission shall take full account of the geographical spread and socio-economic diversities of the Local Government Area. Each Local Government shall be restructured vertically and horizontally to management efficiency and effectiveness, high degree of specialization, job satisfaction, optimum span of control and clear lines of authority and responsibility. All recruitments by the Local Government Junior Staff Management Committee (JSMC) must, as a rule, be in consonance with the manpower needs of the Local government as provided in the approved Local Government Estimates. Any violation of the provision of the Section will be surcharged and the person so irregularly appointed be summarily removed from the service of the Local Government. All applicants for positions in Grade Levels 01-06 in a Local Government shall apply directly to the Local Government of their choice. In all cases, all eligible candidates for appointments shall be interviewed by the Junior Staff Management Committee. All direct appointment to post on Grade Levels 07 and above be open by advertisement to the general public, and copies of such advertisements shall be sent to all the Local Governments within the State. All letters of appointment shall be signed by the Head of the Department of personnel Management in the case of posts grade 01-06, and by the Secretary of the Local Government Service Commission, in the post on Grade Levels 07 and above. Returns of all appointments made by each Local Government shall be rendered monthly to the Local Government Services Commission. (Eneanya, 2012)

iii- **Temporary Appointment:** Recruitment of persons into vacation, part-time or temporary post not exceeding three months shall be decentralized. Returns of all vacation, part-time and temporary appointment made shall be sent to the Local Government Service Commission monthly. Such returns shall show the name, date of birth, date of appointment, grade, qualifications State of origin of employee and up-to-date, intra-state distribution of existing staff in the grade in the Local Government.

Iv- **Acting Appointment:** Acting appointments, where necessary, shall be approved by the Chairman Local Government in respect of local Government employees on Grade Levels 01-06 and relevant returns rendered to the commission on monthly basis. In case of officers on Grade 07 and above, acting appointment, where necessary, shall be approved by the Local Government Service Commission

v- **Disabled Persons Appointment:** All Local Governments shall observe the presidential order which grants disabled persons special concessions in appointment to posts in the public service. All returns and information required to be submitted to the Local Government Service Commission shall be so submitted not later than the last day of the subsequent month. Such returns shall be accompanied with the minutes of the relevant meeting of the Junior Staff Management Committee.

Vi- **Contract Appointment:** The provision of the Local Government Staff Regulations shall apply in all cases to contract appointments, except in the case of non-Nigerians married to Nigerians. Such Nigerians shall remain on contract until granted Nigerian citizenship. Where they are not eligible for Nigerian citizenship, and then, contract shall be reviewed every two years and they shall be considered for promotion along with their colleagues as appropriate, as long as they stay married to Nigerians. Retired officers may only be re-engaged into career posts in a

ccordance with the Rules and Regulations spelt out in the existing Local Government Staff Regulations.

Vii- Junior Staff Recruitment: Each local government shall have Junior Staff Management Committee (JSMC), which will have responsibility for the appointment, promotion and discipline of officers on grade levels 01-06. In all cases, all eligible candidates for appointments shall be interviewed by Junior Staff Management Committee. In all cases, the composition of JSMC shall:

- Reflect the geographical spread of the local government area
- The JSMC shall consist of one representative from each department of local government not below grade level 09 and shall be chaired by the Head of Department of Personnel Management in the local government.
- The Committee shall determine personnel matters of local government employee on grade levels 01-06.
- All applicants for positions on grade levels 01-06 in a local government shall apply directly to the local government area of their choice.

Viii- Senior Staff Recruitment

- The appointment, promotion and discipline of officers on Grade level 07 and above shall be the responsibility of the local Government Service Commission; • The principle of geographical spread and socio-economic diversity of the state shall be taking into full account
- All direct appointments to the post on Grade levels 07 and above shall be by open advertisement to the general public and copies of such advertisements shall be sent to all local governments within the state.

i- Confirmation of Appointment: Confirmation of all probationary appointments shall be carried out by the Local Governments in the case of officers on Grade levels 01-06 and by the Local Government Service Commission in the case of officers on Grade Level 07 and above. The appropriate Heads of Department shall make recommendations to the Head of the Department of personnel management for consideration of the Junior Staff Management Committee (JSMC). The names of officers so confirmed shall be submitted on a monthly basis to the Local Government Service Commission for gazette action.

- Local Government Service Commission: The Local Government Service Commission shall perform the following functions:

- (a) Appoint, post, promote and discipline Local Government employees on Grade Level 07 and above. In doing so, the principle of geographical spread and socio-economic diversity of the State shall be taken into full account. The guidelines for promotion shall be based on the generally accepted principle of experience, performance on the job, length of service, good conduct, relevant qualification, training, performance at interview and relevant examination where appropriate;
- (b) set up general uniform guidelines, for appointment, posting, promotion and discipline;
- (c) Monitor the activities of each Local Government on appointment, discipline and promotion of Local Government employees on Grade 01-06, in order to ensure that the guidelines are strictly and uniformly applied.

- (d) Serve as an Appellate body for all petitions from Local Governments in respect of appointments, promotions and discipline; the decision of the Local Government Service Commission shall be binding on all Local Governments and above shall have the right to appeal to the Governor
- (e) Maintain comprehensive and up-to-date seniority lists and nominal rolls the local Government Service as a whole;
- (f) Submit an annual report of its activities to:
 - i- All Chairman of Local Government in the State
 - ii- The office of the State Governor, and
 - iii- The State House of Assembly
- (g) Maintain a monthly Local Government gazette newsletter to convey, in particular (i) the bye-law passed by the Local Governments in the State and (ii) staff movements including new appointments, confirmations, promotions and retirement/dismissal
- (h) Assures responsibility for manpower planning, development and training in the senior cadres (GL 07 and above) of the Local Government Service;
- (i) Keeps the 1% Local Government Training fund for the training of members of the Unified Staff
- (j) Restructure and strengthen the Department and thereafter, periodically review and propose modifications in operational method and organizational structure of the Local Government Services. .
- (k) The Local Government Staff Pension Board Office, which is at present a separate office, shall remain so. (Eneanya, 2012.

2- PROMOTION, TRANSFER, DISCIPLINE AND RETIREMENT IN LOCAL GOVERNMENT ADMINISTRATION

i. Staff Performance and Promotion

Rewards and sanctions shall be based on concrete measurable performance. All promotions shall be based on relative merit (performance, seniority, additional qualifications, and so on). Local Government shall have power to promote and give advancements to all staff on Grade Levels G 1-06 subjected to the following guidelines: The Head of the Department of Personnel Management shall prepare, at the end of every year, comprehensive staff list showing the order of seniority of a Staff in each grade-on-Grade Levels 01-06, while the Secretary to the Local Government Service Commission shall prepare same in respect of officers on Grade Levels 07 and above within each cadre. Seniority shall be based on the provisions of the existing rules. All officers who fall within the field of selection for any promotion exercise shall be considered except those who are under disciplinary action. The minimum number of years that an officer must spend in a post before being considered eligible to come within the field of selection for promotion shall be as follows (Eneanya, 2012:113): Grade Levels of Staff Number of years in post 01-06 Minimum of 2 (two) years,

07-14 Minimum of 3 (three) years. 15-16- Minimum of 4 (four) years All Local Governments and Local Government Service Commissions shall take into account to APER (Annual Performance Evaluation Report) of each officer for the last 3 years in the service. Each APER shall be summarized and the equivalent marks shall be confirmed or vetted by the moderating officers and shall be shown on the APER form. (Eneanya, 2012). Staff on Grade Levels 07 and above who are being considered for promotion must appear before the Local Government Service Commission for promotion interview. In the case of officers entering into the Senior Management Grade at Grade Level 14, they must in addition, pass proficiency examination or undergo prescribed course. There shall also be promotion examination for promotion from Grade levels 06-07. However, where the Grade level 06 post in training post, then advancement from Grade Level 06-07 shall be based on APER score only In the case of officers in the professional cadres moving from Grade Level 08 to grade Level 09, where the promotions are not subjected to vacancies, each such officer shall be required to pass suitable advancement test while on grade level 08. In the alternative, their promotion may be based on prescribed courses. The criteria for promotion shall be:

(i) Basic qualification (ii) performance (as assessed under APER) (iii) interview performance; (iv) Additional qualification/cognate experience and (v) Seniority the criteria shall normally be weight as follows: Percentage. Performance ----- 50 Interview ----- 30 Additional Qualification/Examination ----- 15 Seniority ----- 5 where additional qualification examination is not an applicant criteria, then the weight assigned to performance shall be increased by 15. Similarly, in cases where interview is not applicable, the weight for performance shall be increases by 30 Local Government qualifications shall render all promotion exercises carried out to the Local Government Service Commission. All briefs used at such meeting and the minutes of the meeting must accompany the returns in respect of posts graded on Grade Levels 01-06. Returns shall reach the Commission not later than two weeks from the date of conclusion of the promotion exercise, National promotion:- officers on leave of absence, on secondment, on approval study leave or on special assignment, who fail within the promotion field of selection, shall be granted, national promotion, if they are worth of promotion, Effective Date of promotion:- The effective date of promotion shall be either January 1, or July 1, and promotions shall not normally have retrospective effect. Every exercise shall be completed the 31st of each year.

ii- Staff Transfer: All transfer shall be subject to prescribed conditions for appointment in addition to the following considerations: • No officer shall be considered for transfer-on-promotion or otherwise to any Local Government or the Unified Local Government Service except to an advertised post. Applications for transfer of service shall be made to the Local Government, in case of posts graded 01-06 and to the Local Government service Commission in case of posts graded 07 and above, and submitted in duplicate supported by the following documents: (A) Evidence of qualifications (B) Satisfactory APER for the 2 years immediately preceding the date of the application (C) officer's Record of service showing clearly, the career progression of the applicant, and (D) recommendation from the applicant's employer, including a statement that the officer will be released if the application is successful An officer may only be considered for transfer if he has grade to which he seeks qualifications, experience and career progression are: (i) comparable to those of officers already in the grade to which he seeks transfer; or (ii) superior to those of officers already in the grade just below that to which he seeks to be transferred. Where the number of vacancies

is limited, extra care must be taken to ensure contemplated transfer would in no way jeopardize prospects of officers already in the service.

Iii- Inter Service Transfer of Staff: In considering inter-service transfer, the Local Government-Service Commission must be satisfied that there are vacancies not only in the relevant grade but also in the applicant's discipline or area of specialization. Once an officer on transfer has agreed to accept an offer of a position, and the position is lower than that for which he initially applied, he shall not, after assumption of duty, petition of upgrading or review on account of comparison with his erstwhile colleagues.

Iv- Transfer From one Local Government to, another Local Government within the State: This shall be channeled through the Local Government Service commission subtract to the availability of vacancy and the overall suitability of the officer seeking transfer of service. This provision shall apply only to officers on Grade Level 01-06

v- Transfer From a Local Government in one State To a Local Government in Another State: This shall be channeled through the Local Government Service Commission Transfer from outside the Local Government Service, for example, where an officer from the federal or State Civil Service or from a Federal or State Government Parastatal is seeking transfer to the Local Government Service: This shall be channeled through the Local Government Service Commission.

Vi- Secondment: The initiative for the secondment of civil servants to the Local Government service shall be taken by a Local Government through the Local Government Service Commission at the time of such secondment; the terms of secondment shall be clearly stated and accepted by all the parties concerned. Such secondment shall not exceed two years in the first instance and not subject to renewal if all the parties agree.

Vii- Right of Appeal: An officer who is dissatisfied or aggrieved as a result of any decision of the Junior Staff Management Committee or the Local Government Service Commission shall have the right of appeal. Appeal against the decisions of the Junior Staff Management Committee shall lie to the Chairman of the Local Government and hereafter to the Local Government Service Commission. Appeal against the decision of the Local Government Service Commission lie to the Commission for a review. After all the internal avenues for redress or been exhausted, and the petitions to the Governor shall be forwarded of the officer concerned through the Chairman of Local Government Service Commission to the Governor, and an advance copy shall be sent to the Government.

Viii- Discipline: Local Government shall exercise disciplinary power over their staff on Grade level 01-06 and the level Government service commission on Local government Service Commission on Local Government employees on Grade Levels 07 and above Local Returns of disciplinary cases indicating names of officers grade, date of present appointment, nature of offence and nature of disciplinary action taken, shall be rendered to the local Government Service Commission within two weeks of the decision. As a further check, the Local Government Service Commission may call for the records used by the Junior Staff Management Committee to satisfy it that justice has been manifestly done.

i- Retirement: Retirement of local government employees is according to 2004 Pension Act, contribution of 7.5% by both employees and employers. When an employee attains the age of

60 years or 35 years of service, he/she is retired from service. Such employee is paid retirement benefits, made up of pension and gratuity. The pension follows the provision of Pension Act of 2004. Under the 2004 Act, an employee is required to maintain an account to be known as Retirement Savings Account (RSA) in his/her name and with any Pension Fund Administrator (PFA) of his/her choice. At the end of his disengagement, the Pension Fund Administrator that managed his/her account pays the Pension, while the local government pays the gratuity, if it is part of the disengagement reward. However, an employee is forbidden from withdrawing from the account until he attains the age of 50 years, except he/she retires on health grounds or for any other reason in accordance with the terms and conditions of his employment.

TOPIC: 4. Training and Development in Local Government Administration

Training has the dual function of utilization and motivation. By improving employees' ability to perform and the tasks required by the company, training allows better use to be made of human resources. In this unit, we shall examine the principles and practices of training and development in local government administration.

i- Training Program: The Local Government Service Commission shall maintain 1% local government training fund for the training of members of the unified staff. Training provisions are made at an early stage of an officer's career; mid-career training to equipment officers of promise to undertake supervisory or middle management responsibility; and training for officers with several or many years of experience to enable them to successfully discharge the duties of higher level managerial posts. Some of the courses may be regarded as falling within the "mainstream" of the training program and these will normally be of a fairly long duration. Others will need to be of a shorter period and should include programs either of a motivational nature or designed to give managerial training to professional and technical officers. There should also be specialist courses for officers in their mid-career, relating to particular spheres of work, for example in professional/technical subjects areas or in management/supervisory techniques. Many of such lectures give participants a good knowledge of modern procedures, recent developments, and innovative methods, etc. Broadly, speaking, there should be two objectives in a local government training programs, viz:-

- a. To ensure that the day to day operations, routines and procedures of local governments can be effectively undertaken and properly understood by the staff.
- b. To provide training to the level which is necessary to equip the staff to meet the more extensive and ever growing management administrative, financial and service problem of the future.

2- Types of Training

On-The-Job Training: An essential element in many scheme of staff development is training "on-the-job". This training technique is demanding in terms of the time of the supervisor and sectorial Head as well as that, at times of the Departmental Head. It is expected that in every local government, a great effort should be made to make at least a small start with the most essential "on-the-job" programs. The seminar or group discussion approach is a type of on-the-job training, which the secretary should find very useful in his

efforts to improve the effectiveness and efficiency of local governments' organization. Such programs could be mounted on a regular basis and as frequently as the work situation permits.

Training off-The Job: A significant part of the total training needs of local governments are met by specialized training institutions. Some of the specialized training institutions offer seminar programs appropriate to the needs of local government official.

The Role of Training Officer: On all local governments, more especially the largest ones, it will be important to the success of staff development programs that consideration should be given to the appointment of a training officer. This officer who would be directly responsible to the secretary should be of considerable seniority and normally would combine his training responsibilities with other duties, including those relating to personnel matters.

The duties of the training officer would probably include: -

- i. Drafting of the staff development policy for review by the secretary and approval by the local government council, periodic review of the relevance and effectiveness of the staff development policy and submission of his findings and recommendations arising there from to the secretary.
 - ii. Maintenance of appropriate records concerning, inter alia, the prescribed training courses to be attended by individual officers and the appropriate objectives and level of them, the period during which the individual officers after proper nomination have actually attended courses, the results obtained and the subsequent work performance of the officers concerned;
 - iii. Maintenance of very close contact and cooperation with the ministry of local government concerning all staff development matters and frequent exchanged of information regarding new or changing requirements in this field and on progress, problems, constraints, etc; in regard to the implementation of approved staff development programs.
 - iv. Mounting of approved training seminars in the local government organization and arranging "on-the-job" training programs.
 - v. Submission to the secretary of regular progress reports concerning the implementation of staff development program.
 - vi. Submission of recommendations to the secretary concerning staff development matters;
 - vii. Consideration of any proposal emanating from members of staff of the local government for the improvement of the staff development policy or staff development programs
- 3- **Staff Development Program:** For a balanced staff development program (which should be an important objective of staff development policy), the secretary working in close cooperation with the ministry of local government will need to have regard to several aspects of the problem. First, in order to ensure that a sound basis exists or can be built and to enable newly appointed officers to play a useful role at an early stage in their career, considerable emphasis will need to be placed on induction training such training would probably last for 2—3 days and be specifically tailored to meet the requirements of each category of officer.

- 4- **Induction Courses or Program:** Induction courses would probably need to include:

- i. A study of the organization including its objectives, programs, projects, staffing etc;
- ii. A consideration of the relationship between the local government and the various ministries and department of the state and federal governments;
- iii. One seminar each on the subject areas of motivation, discipline and effective communication. In this regard, it is of the utmost importance to endeavor to motivate staff as strongly as possible at the outset of their career in the direction, for example, of achieving objectives, meeting target dates for programs and projects, effective management of time;
- iv. An examination of the specific work areas of the trainees and the main responsibilities constraints, problems etc; facing them (Rowland, 1979: 98). There is need, therefore, for a new employee to be inducted as early as possible after being deployed. Otherwise, the new employee may drift into a bad working habit because he has not been properly informed, and may carry out his duties in an unsatisfactory manner.

TOPIC: 4. CLASSIFICATION OF LOCAL GOVERNMENT SYSTEM

Local government systems are classified into three major groups, namely (Ekepe, 2006:72-75):

- i) The French local government system, ii) The Anglo-Saxon local government system and
- iii) The communist local government system

i- The French System

In the French system, local governments are regarded as the local arm of the central government. Under this system, the local government councils are given important power and duties, which they exercise through their principal officers, the mayor. The proceedings of their deliberations, however, are subject to the direction, approval or veto of a civil servant (the prefect), who represents the government of French in the field. The French system is among the most non-revolutionary France to curtail the power of local notables, while hastening government reform. It stresses clear lines of authority, reaching from the central government's ministry of the interior through the centrally appointed prefect of the department to the municipality, which has a locally elected mayor and municipal council. The prefect, being both the chief executive of the department and the representative of the central bureaucracy, provides the channel of centralization, with wide authority to over-rule local councils and supervise local expenditures. Variants of this system are found throughout Europe and in former French colonies. Between the periods 1971 to the early part of 1979, the three states of Nigeria (East Central, South Eastern and Rivers States) structured their local governments deliberately after the French system. The Mid-West State latter borrowed a leaf from the Eastern states. The reason for this system was to whittle down the autonomy of local government and solve the problem of abuse of power by them.

ii- Anglo-Saxon System

The British system of local government is most representative of the major types and has been the model of most of that country's former colonies. This model is characterized by granting autonomy to local governments by the central government. These powers were usually exercised through elected councils on the county and sub-county levels. This system was marked by less

central government interference and greater local budgetary authority than in other systems. The basic point is that it is the central government that determines how much autonomy the local government will have. Theoretically, the central government can curtail the powers exercisable by local governments. A special feature of the British system is its use of an extensive committee system, instead of a strong executive, for supervising the administration of public services.

iii- Marxian System

From Marxian perspective, a question may be raised as to whether local government is not merely an instrumental value, established to serve the interests of the bourgeoisie and to buttress its power over the peasants and the masses. In Marxist-society, there is no need to set up local governments as local government has vibrant life of their own, their activities being designed to serve mainly the interests of the localities. For example, in Russia, local governments constitute a part of a complex of governmental agencies whose main purpose is to serve as an economic planning unit. In Communist China, Local Government is more elaborately structured and plays a somewhat different role. Here, the 37 focus of the local government system is the country. The population of the country ranges from several hundred thousand to over one million people. It manages local public works including irrigation projects, repairing basic consumer goods and agricultural supplies and equipment. The country is encouraged to develop internally integrated and externally independent economies. However, while most countries have complex systems of local government, those of France and Great Britain have served as models for much of the rest of the world.

TOPIC: 5. THEORIES, STRUCTURES AND FUNCTIONS OF LOCAL GOVERNMENT ADMINISTRATION

Gboyega (1987) identified two sets of theories. The first set tries to justify the existence of or the need for local government on the ground of its essentiality to a democratic regime or for practical administrative purpose like responsiveness, accountability and control. The second set opposes the first that the existence of local government cannot be justified by any of those reasons mentioned above in that "local government institutions are neither democratic in their internal operation nor admit of responsiveness, accountability and control". According to the latter argument, local government and democracy stand at the extreme of opposite ends of a polar or are in antithetical relationship to one another, such that the weakness of one is the strength of the other. Gboyega (1987) cited some of the scholars in first category as Mill, Panter Brick, Wilson, Bentham, Mackenzie, Harold Laski and others.

However, three separate theories of local government are common in literature. They are:

1. Democratic: Participatory school of thought
2. Efficiency: Service school of thought
3. Resource Mobilization theory

1. Democratic – Participatory Theory

This school of thought hold the view that local governments exist solely for the purpose of promoting democracy and participation at the grassroots level, thereby bringing government nearer to the people (Adamojekun, et al; 1988: 62). Local government offers the local people the opportunity to manage their affairs. It is a tool for grassroots democracy.

2. Efficiency – Services Theory

This school of thought emphasizes efficient service delivery. There are some services, such as: local roads, distribution of water supply, housing for low income groups, health services, agriculture, are of paramount importance to local needs. Local governance in terms of efficient delivery of services is, therefore, inevitable. Local government can provide services to local needs far more efficiently and economically than the central government. (Adamelekun, et al. 1988: 12)

3. Resource Mobilization Theory

The third justification is that local governments permit local resources both human and material to be mobilized for rural development. Local governments are, thus, veritable instruments most strategically placed for stimulating grassroots development and bringing about rural transformation (Eminue, 2006:31) In summary, the theories above emphasize certain basic elements that explain the role of local government administration:

1. Citizen's participation in the management of local affairs.
2. Efficient and efficient provision of essential services or service delivery
3. Resources mobilization for development purposes.

TOPIC: 6. INTER-GOVERNMENTAL RELATIONS AND LOCAL GOVERNMENT ADMINISTRATION

Federalism is a device for dividing decisions and functions of government. It contrasts with unitary system where there is one predominant central government that assumes full power and responsibility for all government functions but may delegate some of its powers to the local authority. Federalism is different from political and fiscal. Whereas, political federalism deals with the allocation, usually through the instrumentality of the constitution, of powers and authority to tiers of government, fiscal federalism, on the other hand, is essentially about the allocation of government spending and resource to tiers of government (Oates, 1972: 16 – 20; Asobie, 1998:15). In this unit, we shall examine the conceptual and theoretical issues in federalism.

1- Theoretical Perspectives of Decentralization

It is helpful at this point to examine some of the theoretical perspectives that have been used by experts in the field to analyze explain and predict inter-governmental events. However, it will be helpful to define what is meant by theory. A theory is a coherent set of statements describing and explaining the relationships and underlying principles of some aspect of the world. A useful (although somewhat oversimplified distinction may be made between two kinds of theory: normative theory, which offers explanations and predictions for how some part of the world actually is or ought to be. And empirical theory, which offers explanations and predictions for how some part of the world, actually is or will be. These two types are directed at quite different goals. However, in the field of intergovernmental relations efforts to explain an inter-governmental system are simultaneously bound up with attempts to persuade others that certain forms of intergovernmental relations are preferable. In other words, many intergovernmental theories have been both normative and empirical.

a. Federalist School: Moreover, federalism is seen either as alliance or decentralization (Gibson, 2004: 4 – 6). The Alliance or federalist school argues that federalism allows for the surrender of power to the center and gives allowance for self-government. In other words, inherent in the federal arrangement is generalized rule and particularistic rule. Federalist school is concerned with the combination of “self-rule and shared rule”. The logic is that a process of “defederation” begins when the center gets so powerful to the extent that it erodes the powers of the other component units of the federation to run its own affairs within the constitutionally quantified him it, without reference to the central authority. This type of federation is seen as alliance.

c. Decentralization School: Decentralization school view federalism as entailing power devolution to different geographical levels within a nation. This school argues that mere decentralization of power is more important to whether it is a “particular political or constitutional order”. Thus, federalism allows for a great degree of decentralization. The logical is that political exigencies might make federalism desirable but power calculation and domination may make decentralization the empirical reality of powers organization.

2- Ideology of Federalism and Local Government Administration:

The ideologists of federalism do not, of course, utter arguments justifying the benefits that accrue to these beneficiaries. To do so would be to admit that not everyone gets something out the institution of federalism. Yet it is the nature of ideology to be a claim of universal benefit...the ideology of federalism consists of a claim that everyone gets such and such a benefit from it. Since we know, however, from the examination of beneficiaries just completed, that in fact, some people often a majority do not benefit at all, it is easy enough to spot an ideology because it is presented as a claim that everyone gets something good from the institutions of federalism (Riker, 1985:70). Let us look at some of these claims:

i. That federalism promotes democratic polity: It should be abundantly clear, just from looking at the list of federal governments, that not all of them are democracies or even pretend to be democracies, although their claim to be federations is indisputable, Examples are: Mexico, Yugoslavia and Nigeria.

ii. That federalism promotes democracy by promoting an interest in state government. A general one would expect that the greatest interest of the citizens would be center on that level of government that does the most important things. Thus, in a centralized federation one would expect interest to center on the national government, while in a “peripheralized” federation, one would expect the interest to focus on the constituent governments for example, in Nigeria allegiance was on regional governments.

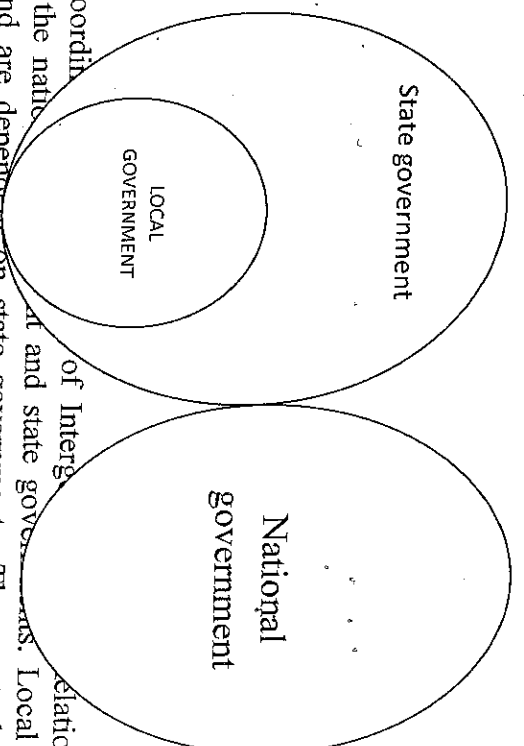
iii. That federalism maintains individual freedom. This is by far the most decentralization in the organization of power. From discussion shown so far, the claim of ideologists of federalism that federal system strengthens freedom is false. Sometimes, federalism reduces freedom as in the case of Nigeria, Local government is controlled by the central and state machineries

2- Models of Federalism and Local Government Relations

In inter-government relations, it is important we evaluate how a group of states are bound into a larger, non-centralized and superior state. The inter-governmental relations may well be classifying into three conceptual models. We can put together some simplified models of

authority relationships among national, state and local authority. Here, we shall scrutinize the features of intergovernmental relations arrangement.

Fig. 1: the coordinate – authority model

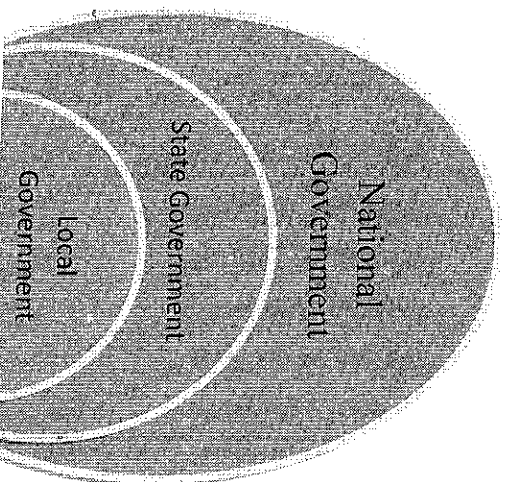


In the coordinate – authority model, the three levels of government are separate the national, state and local governments. Local units, however, are included within and are dependent on state governments. The most classic expression of state/local relations is Dillon's Rule, which summarizes the power relationship between the states and their localities quoted in (Ottole, 1985:58):

1. There is no common-law right of local self-government.
2. Local entities are creatures of the state subject to creation and abolition at the unfettered discretion of the state (barring constitutional limitations)
3. Localities may exercise only those power expressly granted.
4. Localities are "mere tenants at the will of the legislature. This, coordinate – authority model, therefore, implies that the two types of entities are independent and autonomous. They are linked only tangentially. However, when the respective spheres of action put the national government and the state in conflict, they ceased to be tangential and clashed directly. In such case, the Supreme Court becomes the arbiter of national/state relations.

2. Fig. 2. The inclusive - authority model:

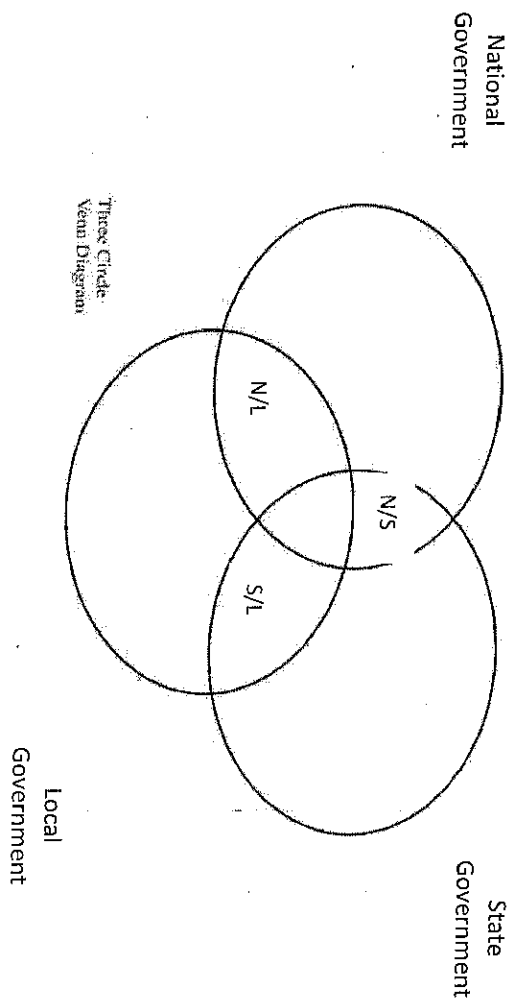
This model is represented in fig. 2 by concentric circles diminishing in size from national to state to local government (Wright, 1985:59).



Going by the above fig. Let us suppose that the area covered by each circle represents the proportion of power exercise by that jurisdiction with respect to others. Suppose the national government wants to expand its proportion of power in relation to states and localities. Two strategies are possible.

- One, reduce the various powers of either the states or localities or both; or
- Two, enlarge the national government's circle with or without enlarging the state and/or local circles. Both strategies can be understood by means of game theory: a systematic way of studying behavior in decision making situations. The theory assumes that all participants strive to optimize their behavior-each trying to maximize gains and minimize losses within the limits of allowed behavior (hence the analogy with games). The outcome is seen to depend not only on the behavior of any one participant but on the responses of other participants as well. In the first strategy, is the classic case of a three - person, zero - sum game? The sum of the player's winnings equals the sum of their losing. An illustration of this in the Intergovernmental Relation contexts is the usury case in USA and the legislation requiring state and local units to meet minimum wage and maximum hour requirements. The national government attempted to exercise (expand) its power at the expense of state/local powers. The gain in national power equaled the power or discretion lost by state and local units. Thus, the national gains equaled state/local losses. In game theory, the second strategy is called a "non-constant - sum game. All participants in this type of game can "win" or make gains. Perhaps the best Intergovernmental Relation illustration of the second strategy is fiscal: the conditional grant-in-aid. The national sector can expand by raising more money to offer and grants to states and local governments. The funds can be offered with conditions ("losses") imposed on the recipients. But the benefits (winnings) are so attractive that they appear to outweigh the attached constraints. From these examples of the two strategies, we would expect national Intergovernmental Relation policies to lean far more toward the strategy - such as grants in aid. The strategy assumes that the total resources ("winnings") can be expanded. However, the inclusive - authority model serves other uses besides allowing predictions of Intergovernmental Relation policies. The model also conveys the essential hierarchical nature of authority. The dependency relationships imply powers patterns that are similar to Dillon's rule for state/local relations. That is, states and localities would be mere minions of the national government with insignificant or incidental impact on American politics and public policy. To the question of who governs, this model provides an unequivocal answer - the national government.

3. The Overlapping – Authority Model



The overlapping – Authority Model of Intergovernmental Relation comes from the early 1970s and from efforts by the Nixon administration to innovate and decentralized decision – Making in categorical grant-in-aid programs (Wright, 1985:59): The overlay among the circles conveys three characteristics features of the model:

- i. Substantial areas of governmental operations involve national, state and local units (or officials) simultaneously;
- ii. The areas of autonomy or single-jurisdiction independence and full discretion are comparatively small
- iii. The power and influence available to anyone jurisdiction (or official) is substantially limited. The limits produce an authority pattern best described as bargaining.

Bargaining is used in common dictionary sense of “negotiating the terms of a sale, exchange, or agreement”. In the Intergovernmental Relation context, sale is far less relevant than exchange or agreement. For example, the national government offers more than 1000 assistance programs to states and localities in exchange for their agreement to implement a program; carryout a project, or pursue anyone of a wide variety of activities. Off-course, as part of the bargain, the recipient of assistance must usually agree to conditions, such as; the providing of matching funds and the satisfaction of accounting, reporting, auditing and performance requirements.

In sum, the chief characteristics of the overlapping – authority models are:

Limited, dispersed power, Interdependence, Limited areas of autonomy, Bargaining – exchange relationships, Cooperation and competition Contacts and exchanges between national, state, and local officials may be cooperative or competitive; the determining factors include: the policy issue or problem, the status of the officials, the partisan leanings of participants, and the constituency being represented

3- Structures of Federal and Inter-Governmental Relation

Federalism is practiced by many countries of the world. As a political system, it was adopted to cater for diversities and heterogeneity of these societies. Federalism simply refers to a division of power between national, state and local governments. Here, we shall examine the structure and patterns of federal system.

Federal Structure: The federal structure of governmental offers the more defined platform for the operations of inter-governmental relations. In federal system, Elekwa (1995) in Ikejiana – Clark and Okoli (eds.) identify six levels of inter-governmental relations namely:

- i. Federal - State relations
- ii. Federal - State - Local relations
- iii. Federal - Local relations
- iv. State - Local relations
- v. State - State relations and
- vi. Local - Local relations.

The levels of enumerated above represent both vertical and horizontal Ayode (1980) also defines inter-governmental relations as comprising nine patterns:

- i. Federal - State
- ii. Federal - Local

- iii. Federal - Civic groups
- iv. State - State
- v. State - Local
- vi. State - Civic group's
- vii. Local - Local
- viii. Local - Civic groups, and
- ix. Inter-Civic groups.

From this pattern, it could be seen that four new levels have been added to former structure, namely; federal – civic groups, state – civic groups, local - civic groups, and inter - civic groups (civic – civic). This structure excluded “federal – state – local relations”. Despite these differences, the core levels of inter – governmental relations present within a federal structure are represented (Ogbuishu, 2007). Thus:

2- Features of a Federal System: A federal system of movement is one in which powers

are distributed between the center and the states. The constitution of a federal state is always written and spells out the power and functions of central, state and local governments. The essence is to avoid conflict and controversy that may arise between these levels of government. Thus, a federal system is characterized by the following:

- i. **Division of powers:** separation of powers between the federal, state and local governments. The constitution provides for the distribution of powers between these levels of governments.
- ii. **Supremacy of the constitution:** the constitution is supreme and any laws from the state or local governments that are inconsistent with the constitution are null and void.
- iii. **Bicameral legislature:** the federal system legislature is often patterned according to bicameral system. That is, the federal systems consist of two houses – the upper house and the lower House.
- iv. **Written and rigid constitution:** the federal constitutions of most states are often written and rigid. It means that the constitution cannot be altered with a simple majority vote.
- v. **Greater central control:** superiority of the center in practice.

b. Intergovernmental Structures: Intergovernmental relations structures are almost always designed to accommodate differing communities of interest - social, ethnic, and political as the boundaries of governments often possess, or soon acquire, symbolic meanings for communities that identify with them. Sometimes, a community is so dominated by one ethnic group that this impacts their relations – their intergovernmental relations – with other levels of government. Thus, the people of Quebec, because of their strong French cultural identity, have been able to get special advantages from the Canadian national government. Alternatively, ethnically dominated communities in other countries have complained that they get fewer resources from their national government because of their minority status

TOPIC: 7. FISCAL RELATIONS AND LOCAL GOVERNMENT

In most federal countries, there exists a strong center, while preserving the diversity reflected in individual states. In Nigeria, federal and state governments exist side by side, with each possessing certain assigned functions. In this topic, we shall discuss federal – state – local government relations as it relates to finance.

In federal systems, devolution of power between the central and component units is to design issues that concern the federal and others of common interest. Presently, Nigeria is highly centralized as the central government had enormous powers conferred on it by section 4, subsection 5 of 1999 constitution. By this, the federal government is constitutionally granted two sets of legislative powers, namely: those contained in the exclusive list and those contained in the concurrent list. Besides, laws made by states can be overridden by federal laws if there is conflict. The federal government exercises statutory responsibility creation of new local governments.

1- Federal - State and Local Government Relations

Finance is the most critical policy issues in intergovernmental fiscal relations. The issues concerning fiscal relations among the constitutional units of the Nigerian federation that remain mostly unresolved are the disagreement between assigned functions and tax powers; the principle of horizontal and vertical revenue allocation; dependence of state and local governments on the federal sources of funding; the tendency towards concentration and federal presence in the state (Mbanefo, 1998). As the federal – state and local governments have powers under the concurrent list on collection of taxes, there were overlaps in tax and levy collection by various tiers of government necessitating a new schedule of taxes being published for all tiers of government.

2- Collection of Taxes

- i. **Federal government taxes:** According to the new schedule of 1999 constitution, the federal government is empowered to collect the following taxes (Eneanya, 2009: 254): Company income tax, Petroleum profit tax, VAT, Education tax, Capital gains tax, Stamp duties of corporate entities, Personnel income tax of armed forces, Foreign affairs, Police, Residents of the federal capital territory of Abuja.
- ii. **State governments are empowered to collect the following taxes:** Personal income tax, Withholding and capital gains tax, Stamp duties from individuals, Road taxes, Development levy and Business premises and registration level
- iii. **Local governments:** are to collect the following taxes, Levy on shops and kiosks, Slaughter fees, Marriage, birth and death fees, Motor park fees, Cattle tax, Radio and television tax and Advertisement tax. There was another fiscal amendment in 1999 arising from the 1994 – 95 constitutional conference as a prelude to the 1999 constitution, which increased the list of items on the exclusive list from 66 in 1979 to 68 in 1999 and not less than 13% of proceeds from natural resources (offshore production proceeds commenced in March 2000).

3- Mechanism for Managing Federal State and Local Government Relations

However, under the federal system, a number of administrative mechanisms are often devised to manage intergovernmental relations. In Nigeria, a number of meetings and conferences with administrative standing committees, constitutional boards, council or commissions have been associated with federal, state, local or interstate constitutions (Eneanya, 2009: 255). With the emergence of democratic governance, since 1979, management of inter-governmental relations has followed these dimensions (Eneanya, 2009: 256 – 7):

- i. The use of national economic council and national council of states;